

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schnur	Team: Team # 3	CCRB Case #: 201005897	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 05/02/2010 6:30 PM	Location of Incident: Tompkins Avenue between Hart Street and Pulaski Street		18 Mo. SOL 11/2/2011		Precinct: 79
Date/Time CV Reported Sun, 05/02/2010 7:03 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 05/02/2010 7:03 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Erick Erdaide	08391	947910	BN IRT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Vincent Campo	08206	947994	BN IRT

Officer(s)	Allegation	Investigator Recommendation
A . POM Erick Erdaide	Abuse: Officer Erick Erdaide stopped § 87(2)(b)	A . Substantiated
B . POM Erick Erdaide	Abuse: Officer Erick Erdaide searched § 87(2)(b)	B . Substantiated
C . POM Erick Erdaide	Abuse: Officer Erick Erdaide frisked § 87(2)(b)	C . Substantiated

Case Summary

§ 87(2)(b) filed a complaint with the CCRB via the call processing system on May 2, 2010 regarding an incident that occurred on the same date (encl. C1).

At approximately 6:30 p.m. on May 2, 2010, an officer stopped § 87(2)(b) as he walked in the vicinity of Tompkins Avenue between Hart and Pulaski Streets in Brooklyn. The following allegations occurred:

Allegation A – Abuse of Authority: Officer Erick Erdaide stopped § 87(2)(b) § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation A be **substantiated**.

Allegation B – Abuse of Authority: Officer Erick Erdaide searched § 87(2)(b)

Allegation C – Abuse of Authority: Officer Erick Erdaide frisked § 87(2)(b) § 87(2)(g)

§ 87(2)(b) it is recommended that Allegations B and C be **substantiated**.

On May 12, 2010, § 87(2)(b) declined mediation as a means to resolve his complaint. § 87(2)(b)

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b), African-American, § 87(2)(b), dark brown hair, dark brown eyes

CCRB Intake Statement

On May 2, 2010, § 87(2)(b) filed a complaint with the CCRB via the call processing system (encl. C1). § 87(2)(b) said that an officer, identified through the investigation as Officer Erick Erdaide of the Brooklyn North Impact Response Team (IRT), in a marked NYPD van tried to intimidate § 87(2)(b) by making a face at him. § 87(2)(b) said he smiled at the officer in response. Officer Erdaide then exited the van, grabbed § 87(2)(b) pushed him against a gate and searched him, putting his hand into § 87(2)(b)'s pocket. Officer Erdaide did not explain the reason for the stop. Another officer, identified through the investigation as Officer Vincent Campo of Brooklyn North IRT, approached and assisted Officer Erdaide. The other officers inside of the van also exited and watched the incident.

CCRB Phone Statement and CCRB In-Person Statement

On May 6, 2010, § 87(2)(b) provided a CCRB phone statement (encl. C2). On May 12, 2010, § 87(2)(b) provided an in-person CCRB statement (encl. C3). § 87(2)(g)

At approximately 6:30 p.m. on May 2, 2010, § 87(2)(b) exited the subway at the Myrtle Avenue/Willoughby Avenue stop in Brooklyn and walked for about five minutes, alone, to the vicinity of Tompkins Avenue between Hart Street and Pulaski Street. § 87(2)(b) was wearing black sunglasses, a black durag, a black button-down short-sleeved shirt, slightly baggy black jeans and black Jordan sneakers. § 87(2)(b) said the black jeans he was wearing fit the same way as the blue jeans he wore to the CCRB. § 87(2)(b) was photographed in these blue jeans

(encl. C14). § 87(2)(b) was not wearing a jacket and the top of his button-down shirt came to his waist, so his jeans pockets, including the tops of the pockets, were visible. § 87(2)(b) was not carrying any bags. In the left, front pocket of the jeans (which was facing the street as § 87(2)(b) walked down Tompkins Avenue), § 87(2)(b) was carrying an MP4 player with white iPod headphones attached to it. § 87(2)(b) was listening to his music as he walked on Tompkins Avenue, so the iPod headphone cord was visible. He also had \$160 in twenty dollar bills, folded. His sister had given him this money as a birthday gift. He may have had some loose change in this pocket. In the right, front pocket of his jeans (which was facing away from the street), § 87(2)(b) had a cell phone charger with the cord wrapped around it stuck deeply enough into the pocket that no portion of it was sticking out. § 87(2)(b)'s cell phone was in the smaller, upper portion of the right hand pocket, possibly with its top sticking out visibly (encl. C14). § 87(2)(b)'s wallet was in his back right jeans pocket.

As § 87(2)(b) passed Hart Street and headed toward Pulaski Street, he noticed a marked NYPD van driving slowly behind him. As the van passed, § 87(2)(b) saw five to seven uniformed officers inside. The van's windows were rolled up. Because § 87(2)(b)'s left side was facing the street, the officer in the front passenger's seat, identified through the investigation as Officer Erick Erdaide, was closest to § 87(2)(b) as the van rolled by. As the van moved slightly ahead of § 87(2)(b) Officer Erdaide looked out the window and made a funny gesture at § 87(2)(b) lifting up both of his hands to the side of his face and waving them around while sticking out his tongue. § 87(2)(b) who found Officer Erdaide's behavior weird and intimidating, shrugged his shoulders and mouthed the words, "What the fuck?" He did not say this aloud. The van stopped five to ten feet ahead of § 87(2)(b) and Officer Erdaide and other uniformed officers exited.

At this point, § 87(2)(b) was close to a house's front gate. Officer Erdaide walked directly up to § 87(2)(b) and pushed him in an effort to maneuver his body, chest first, against the gate. Officer Erdaide directed § 87(2)(b) to put his hands behind his back. He then took hold of one of § 87(2)(b)'s arms, and with his other hand reached directly for § 87(2)(b)'s left front pocket (which, again, contained the MP4 player and \$160). Officer Erdaide entered § 87(2)(b)'s left front pocket with his hand and pulled out the MP4 player. § 87(2)(b) protested Officer Erdaide's actions, asking Officer Erdaide to explain the stop and saying he knew Officer Erdaide could not just reach into his pockets. § 87(2)(b) told the CCRB that § 87(2)(b) he is familiar with stop-and-frisk procedures).

After Officer Erdaide removed the MP4 player from § 87(2)(b)'s left front pants pocket, § 87(2)(b) thrust his arm to get Officer Erdaide off of him and then turned around and faced Officer Erdaide, saying he would not turn back around because Officer Erdaide was not giving a reason for the stop. Officer Erdaide reached toward § 87(2)(b)'s front right pants pocket. Officer Erdaide felt the outside of the pocket and, feeling the charger with the cord wrapped around it, said, "What's this?" § 87(2)(b) said, "That's my charger, do you want to see it?" Officer Erdaide said, "No." Officer Erdaide's partner, identified through the investigation as Officer Vincent Campo, approached the men. In front of Officer Campo, § 87(2)(b) asked Officer Erdaide, "Why are you stopping me?" Officer Erdaide pointed toward § 87(2)(b)'s right front pants pocket (which contained the charger) and said, "I saw a bulge in your pocket, and I stopped you, and I needed to see what it was." § 87(2)(b) wanted to know how Officer Erdaide saw the bulge from such a distance. Without answering, Officer Erdaide frisked § 87(2)(b) patting down one of his legs and feeling around his groin.

Officer Campo tried to calm down § 87(2)(b) and asked for his identification, which § 87(2)(b) provided. Officer Erdaide recorded § 87(2)(b)'s information. § 87(2)(b) asked why he had been stopped, and Officer Campo said, "[Officer Erdaide] already told you – he just said that this is a high crime area and you're in all black." § 87(2)(b) did not actually hear Officer Erdaide say this, he only heard Officer Campo repeat it back to him (in § 87(2)(b)'s phone statement, he said that Officer Erdaide provided this explanation). The incident ended when one of the officers said, "Let's go, let's go." The officers re-entered the police van and left. § 87(2)(b) was not issued any summonses. He believed the incident took ten minutes.

NYPD Statements:

Subject Officer: OFFICER ERICK ERDAIDE

- § 87(2)(b) *old, Hispanic, § 87(2)(b), short black hair, hazel eyes*
- *Brooklyn North Impact Response Team, Foot Post #38 (Madison Street), Officer Vincent Campo, on foot, in uniform, 5:30 p.m. to 2:00 a.m.*

UF-250 § 87(2)(b)

On May 2, 2010, Officer Erdaide prepared Stop, Question and Frisk report #§ 87(2)(b) (encl. D2 – D3). At 6:30 p.m. on May 2, 2010, § 87(2)(b) was stopped in the vicinity of Hart Street and Tompkins Avenue for suspicion of criminal possession of weapon (CPW). The report says § 87(2)(b) displayed furtive movements and had a suspicious bulge or object on his person, which was an iPod and charger. The area in which § 87(2)(b) was stopped has a high incidence of CPW.

Memo Book Entries

On May 2, 2010, Officer Erdaide made memo book entries regarding this incident (encl. D4 – D8). At 6:30 p.m., Officer Erdaide stopped § 87(2)(b) at Hart Street and Tompkins Avenue for suspicion of CPW. An iPod charger was found in § 87(2)(b)'s right pocket. Officer Erdaide wrote, § 87(2)(b) said we should explain why we stopped him before frisking him when procedures state the explanation comes after the officer and his partner's safety is secured."

CCRB Testimony

On June 8, 2010, Officer Erdaide provided an in-person CCRB statement (encl. D9 – D11).

At approximately 6:30 p.m. on May 2, 2010 in the vicinity of Tompkins Avenue and Hart Street in Brooklyn, Officer Erdaide was in the front passenger's seat of a transport van on the way to his foot post. Officer Erdaide believed no supervisor was present. In addition to himself, Officer Campo, the van's operator and four to five other officers were in the van.

As the van drove down the street, Officer Erdaide looked out of the right side window and saw § 87(2)(b) walking on the sidewalk. Officer Erdaide was approximately one car width away from § 87(2)(b) when he first observed § 87(2)(b) as there was a car parked on the street between the moving van and § 87(2)(b)'s person. As Officer Erdaide observed § 87(2)(b) he saw § 87(2)(b) grabbing at his right pocket and moving it around. Although § 87(2)(b)'s right side pocket was not facing the street, after the van drove past § 87(2)(b) Officer Erdaide turned around so that he could see the entire front of § 87(2)(b)'s body. Officer Erdaide said § 87(2)(b) appeared "nervous," and elaborated that this meant § 87(2)(b) was nervously adjusting certain parts of his body [his right pocket], a motion Officer Erdaide called "furtive movements," because there could possibly be a weapon on his person.

Officer Erdaide said § 87(2)(b) appeared to be manipulating an object inside of his right pants pocket because Officer Erdaide could see a bulge in that pocket. Officer Erdaide said the bulge was rectangular shaped and he figured that it could be a knife or brass knuckles. Officer Erdaide did not recall what § 87(2)(b) was wearing or how his clothes fit. Officer Erdaide was told that § 87(2)(b) was wearing all black at the time of the stop and Officer Erdaide said to his knowledge all black does not indicate a gang affiliation and that this clothing was “not necessarily” a factor in his decision to initiate the stop.

Although the officers were not investigating a recent radio run for a violent crime at the time, Officer Erdaide said the area in which he observed § 87(2)(b) was a high crime area where shootings and robberies occur often. Officer Erdaide had been assigned to work in this area steadily for five months at the time of his encounter with § 87(2)(b).

Officer Erdaide observed § 87(2)(b) for about ten seconds and then decided to stop him. Officer Erdaide stopped § 87(2)(b) for suspicion of criminal possession of a weapon. The factors that led to this suspicion were § 87(2)(b)'s “furtive movements” (the grabbing of his right pocket) and the observed rectangular bulge. Officer Erdaide and his partner, Officer Campo, exited the van. Prior to exiting, Officer Erdaide did not stick his tongue out or wave his hands at § 87(2)(b).

Officer Erdaide and Officer Campo approached § 87(2)(b). Officer Erdaide did not recall if § 87(2)(b) continued to move around the object in his pocket as the officers approached him. Officer Erdaide said when he first approached § 87(2)(b) he planned to ask for his pedigree information and to find out if he lived in the area and what he was doing. As soon as the officers exited the van, however, § 87(2)(b) became agitated and uncooperative. Officer Erdaide instructed § 87(2)(b) to stand up against a fence, but § 87(2)(b) did not want to, saying, “Why are you stopping me? You can’t stop me!” § 87(2)(b) demanded an explanation for the stop. Officer Erdaide described § 87(2)(b)'s tone as “excited,” explaining that § 87(2)(b) was not yelling but also was not speaking in a normal tone of voice. Officer Erdaide did not recall § 87(2)(b) using profanity and said that although § 87(2)(b) may have been gesturing with his hands as he spoke, this was not in an aggressive manner. Officer Erdaide’s level of suspicion, however, was raised by § 87(2)(b)'s agitation. Officer Erdaide explained that sometimes perpetrators will act in this manner to make officers back off. Officer Erdaide instructed § 87(2)(b) multiple times to stand against the fence and may have grabbed his arm to position § 87(2)(b) against this fence. Officer Erdaide told § 87(2)(b) that he would explain the stop after it was over.

After § 87(2)(b) was against the fence, Officer Erdaide frisked § 87(2)(b)'s right pocket. Officer Erdaide said the frisk was allowed because § 87(2)(b) was being stopped on suspicion of a violent crime. Officer Erdaide felt a hard, rectangular object inside of § 87(2)(b)'s pocket. He could not describe the object more specifically. During the frisk, Officer Erdaide did not know what the object could be. He told the CCRB that weapons can be concealed in many different ways and that from a frisk it is hard to determine what an object is. Officer Erdaide said he was “not expecting something like a cell phone gun,” but that when an officer feels a hard object during a frisk, the officer is allowed to search the stopped individual for weapons. Officer Erdaide said a line on the Stop, Question and Frisk form says this is permitted.

Officer Erdaide reached into § 87(2)(b)'s right pocket and removed a rectangular, plastic charger. § 87(2)(b) said this was an iPod charger. The charger was the only thing Officer

Erdaide pulled out of § 87(2)(b)'s right pocket. Officer Erdaide did not know what else § 87(2)(b) had in this pocket. After pulling out the charger, Officer Erdaide performed a full body frisk of § 87(2)(b). Officer Erdaide did this because he had initially stopped § 87(2)(b) for suspected CPW, which is a violent crime, and thus a full body frisk of the stopped individual is allowed to make sure that there are no "other" concealed weapons. Officer Erdaide did not feel anything suspicious on § 87(2)(b)'s person. Officer Erdaide did not recall reaching into § 87(2)(b)'s left pocket. § 87(2)(b) told Officer Erdaide he was carrying an iPod.

After the search and frisk, Officer Erdaide attempted to explain to § 87(2)(b) why the stop had occurred, but § 87(2)(b) no longer wanted to speak to him. § 87(2)(b) gave Officer Campo his identification. The incident lasted about five minutes.

Witness Officer: OFFICER VINCENT CAMPO

- § 87(2)(b) *old, Caucasian, § 87(2)(b), brown hair, brown eyes*
- *Brooklyn North Impact Response Team, Foot Post #38, Officer Erick Erdaide, on foot, in uniform, 5:30 p.m. to 2:05 a.m.*

Memo Book Entries

On May 2, 2010, Officer Campo made memo book entries regarding this incident (encl. D12 – D14). At 6:30 p.m., § 87(2)(b) was stopped at the corner of Hart Street and Tompkins Avenue for CPW and furtive movements. There was a phone charger in his right pocket. At 6:33 p.m., Officer Erdaide prepared a report regarding the incident.

CCRB Testimony

On July 21, 2010, Officer Campo provided an in-person CCRB statement (encl. D15 – D16).

At approximately 6:30 p.m. on May 2, 2010, Officer Campo was riding in a transport van on his way to his foot post. Officer Erdaide and about three other officers were also inside the van.

In the vicinity of Tompkins Avenue and Hart Street in Brooklyn, Officer Erdaide told the van's operator to stop the van, saying he "saw something." Officer Erdaide did not explain anything else and, giving no indication why, exited the van. None of the other officers questioned what was happening. Because he and Officer Erdaide are partners, Officer Campo also exited the van. Other officers also exited, but they did not become involved in the incident that transpired. To Officer Campo's knowledge, Officer Erdaide did not stick out his tongue or wave his hands from inside of the RMP at the civilian who was being stopped, § 87(2)(b).

Upon exiting the van, Officer Campo first observed § 87(2)(b). § 87(2)(b) was about ten to fifteen feet away from Officer Campo, walking. Officer Campo could not recall what § 87(2)(b) was wearing and said that he was "not sure" what he saw on § 87(2)(b)'s person from this distance. The officers approached § 87(2)(b) who immediately became hostile, saying, "Why are you stopping me? This is ridiculous!" Officer Erdaide said everything would be explained at the stop's conclusion. As Officer Erdaide spoke with § 87(2)(b), Officer Campo was three to four feet away from them. Officer Campo observed a hard object inside of § 87(2)(b)'s pocket. Officer Campo believed the object was in § 87(2)(b)'s right pocket. The object formed a bulge. Officer Campo was unable to describe the object further, saying it was "just a bulge" and "just a hard object." He could not describe the object's shape. He knew it was a hard object by looking at it, as a softer object will compress more inside of a pocket. Officer Campo said he speculated the bulge "could have been a weapon of some kind" but he

“didn’t have any specific speculation [as to what kind of weapon]...It could have been anything, to be honest with you, I don’t really know...It was just a hard object.” Officer Campo did not recall seeing any other bulges on § 87(2)(b)

Officer Erdaide frisked § 87(2)(b) concentrating the frisk on the bulge in his right pocket. Officer Campo did not remember if Officer Erdaide removed the object, which turned out to be a phone charger, from § 87(2)(b)’s pocket. Officer Campo said he recalled seeing the phone charger, but did not recall who was holding the phone charger when he saw it. § 87(2)(b) continued to question why he was being stopped throughout the frisk.

The incident took about five minutes. The officers then re-entered the van. Officer Erdaide told Officer Campo he had seen § 87(2)(b) making furtive movements. Officer Campo did not see § 87(2)(b) make furtive movements. He said that if § 87(2)(b) repeatedly reached for a part of his person as if to check for an object, it would have constituted a furtive movement.

NYPD Documents

SPRINT Job #§ 87(2)(b) /SPRINT CD Recording

SPRINT Job #§ 87(2)(b) states that at 6:40 p.m. on May 2, 2010, Post #38 reported one male stopped at the corner of Hart Street and Tompkins Avenue in Brooklyn (encl. E1; SPRINT CD). A Stop, Question and Frisk report was prepared in regards.

Brooklyn North IRT Roll Call

The Tour 3 Brooklyn North IRT Roll Call for May 2, 2010 shows that Officer Erdaide was assigned to Impact Foot Post #38 (encl. E2 – E6).

Status of Civil Proceedings

§ 87(2)(b) has not filed a Notice of Claim with the City of New York as of November 5, 2010 with regard to the incident (encl. F8A).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian’s CCRB History

This is the first CCRB complaint filed by § 87(2)(b) (encl. B2).

Subject Officer’s CCRB History

Officer Erdaide has been a member of the service for one year and there are no substantiated CCRB allegations against him (encl. B1).

Conclusion

Identification of Subject Officer

Officer Erdaide acknowledged that he interacted with § 87(2)(b)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Officer Erick Erdaide stopped § 87(2)(b)

It is undisputed that Officer Erdaide forcibly stopped § 87(2)(b). In providing a justification for stopping and detaining § 87(2)(b) Officer Erdaide told the CCRB that from inside of a moving police van and from about one car width away, he observed § 87(2)(b) walking on

the sidewalk and grabbing at his right pants pocket. § 87(2)(b)'s right side was facing away from the police van, but as the van passed § 87(2)(b) Officer Erdaide continued to observe § 87(2)(b) and saw him continue to “nervously” grab at his right pants pocket, apparently manipulating an object inside of the pocket. From his position inside of the van, Officer Erdaide said he could see a rectangular-shaped bulge in § 87(2)(b)'s right pants pocket. He speculated that the rectangular-shaped bulge was a knife or brass knuckles. Although Officer Erdaide was not investigating a recent radio run for a violent crime in the area, he pointed out that § 87(2)(b) was walking in a high crime area. After observing § 87(2)(b) for ten seconds, Officer Erdaide decided to forcibly stop him for suspected criminal possession of a weapon. Officer Erdaide's suspicion was based on the observed rectangular bulge inside of § 87(2)(b)'s right pants pocket coupled with § 87(2)(b)'s grabbing at this pocket.

According to *People v. DeBour*, “where a police officer entertains a reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor, the [Criminal Procedural Law] authorizes a forcible stop and detention of that person” (*People v. DeBour*, 40 N.Y.2d 210 [1976]) (encl. A1 – A13). § 87(2)(g)

§ 87(2)(b). As *DeBour* points out, “A pocket bulge...could be caused by any number of innocuous objects” (*People v. DeBour*, 40 N.Y.2d 210 [1976]) (encl. A1 – A13). § 87(2)(g)

§ 87(2)(b). In *People v. Cooper*, the Court found that an officer's observation of an amorphous bulge, coupled with a defendant's display of behavior that is susceptible to an innocent explanation, does not form a sufficient basis to suspect that a defendant is armed and thus does not justify a forcible stop (*People v. Cooper*, 2007 NY Slip OP 27388 [2007]) (encl. A14 – A18). § 87(2)(g)

§ 87(2)(b) “tentative belief that the bulge might be a weapon was speculation” (*People v. Cooper*, 2007 NY Slip OP 27388 [2007]) (encl. A14 – A18). Finally, while *People v. Holmes* concedes that the observation of an unidentified bulge on a person may give an officer an objective, credible reason to approach said person and request information, the observation does not provide the reasonable suspicion necessary to conduct a forcible stop (*People v. Holmes*, 81 N.Y. 2d 1056 [1993]) (encl. A19 – A24). § 87(2)(g)

§ 87(2)(b) As a result, it is recommended that Allegation A be **substantiated**.

Allegation B – Abuse of Authority: Officer Erick Erdaide searched § 87(2)(b)

Allegation C – Abuse of Authority: Officer Erick Erdaide frisked § 87(2)(b)

It is undisputed that Officer Erdaide frisked and searched § 87(2)(b) once he was stopped, § 87(2)(g). According to § 87(2)(b) Officer Erdaide immediately reached his hand into § 87(2)(b)'s left pants pocket (which § 87(2)(b) said contained a MP4 player and \$160) and removed the MP4 player. § 87(2)(b) said it was only after the search that Officer Erdaide frisked § 87(2)(b)'s right pants pocket (which § 87(2)(b) said contained the cell phone charger and cell phone) and his body. According to Officer Erdaide, he first frisked § 87(2)(b)'s right pants pocket and then reached into the pocket and removed a plastic charger identified by § 87(2)(b) as an iPod charger. Officer Erdaide then said he frisked § 87(2)(b)'s body.

§ 87(2)(g)

§ 87(2)(b). According to *People v. DeBour*, “A corollary of the statutory right to temporarily detain for questioning is the authority to frisk if the officer reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed” (*People v. DeBour*, 40 N.Y.2d 210 [1976]) (encl. A1 – A13). § 87(2)(g)

Although *People v. Holmes* recognized that observing an unidentified bulge gives an officer an objective reason to approach a civilian and ask for information, *People v. Howard* makes it clear that an immediate and preemptive forcible stop, followed by an immediate frisk of the civilian, is unjustified under such circumstances (*People v. Howard*, 147 A.D.2d 177 [1989]) (encl. A32 – A38). § 87(2)(g)

Officer Erdaide could not recall if § 87(2)(b) continued to manipulate the rectangular-shaped object in his pocket as the officers approached him. Officer Erdaide said that § 87(2)(b) quickly became “agitated” and “uncooperative” by asking why he was being stopped. Officer Erdaide said that § 87(2)(b) was not yelling, but also not speaking in a “normal” tone of voice. He said § 87(2)(b) may have gestured with his hands as he asked for an explanation for the stop, but that this gesturing was not aggressive. § 87(2)(b) s questioning why he was stopped raised Officer Erdaide’s suspicion level, because sometimes perpetrators act agitated to make officers back off. § 87(2)(b) admitted to questioning Officer Erdaide’s actions, explaining that § 87(2)(b) he is somewhat familiar with stop-and-frisk procedures. *People v. Miller* defines “innocuous behavior” as “behavior which is susceptible of innocent as well as guilty interpretation” (*People v. Miller*, 121 A.D.2d 335 [1986]) (encl. A25 – A28) and, according to the above-referenced *People v. Cooper*, such behavior cannot create a reasonable suspicion that a person is armed. § 87(2)(g)

§ 87(2)(g) According to Officer Erdaide, when he frisked § 87(2)(b) s right pants pocket, he felt a hard, rectangular object inside of it. He was unable to describe the object more specifically and admitted that he did not know what the object could be. According to Officer Erdaide, an officer is allowed to search a stopped individual for weapons when the officer feels a hard object on someone’s body during a frisk. Police Patrol Guide Procedure 212-11. § 87(2)(g) states that an officer can perform a search if a frisk reveals an object which may be a weapon (encl. A29 – A31) § 87(2)(g)

§ 87(2)(b) it is recommended that Allegations B and C be **substantiated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date